

Form No.HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT

LAHORE.

JUDICIAL DEPARTMENT

Case No: Cr. Misc. No.247484-CB of 2018

Riasat Ali v. Ghulam Haider, etc.

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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12.03.2019 Mr. Hamid Maqbool Bhatti, Advocate for the petitioner.
Mr. Tariq Javed, District Public Prosecutor with Rehmat
ASI.
Mr. Muhammad Akhtar, Advocate for respondents No.1
to 5.

Through the instant petition in terms of section
497(5) Cr.P.C, the petitioner (complainant) has sought
recalling of order dated 27.10.2018 passed by the learned
Addl. Sessions Judge, Lahore, wherein pre-arrest bail of
respondents No.1 to 5 was confirmed in case FIR
No.956/2018 dated 16.05.2018 registered u/s 324/337-
F(iii)/337-A(ii)/148/149 PPC at Police Station Kahna,
Lahore.

2. Succinctly the prosecution story as narrated in FIR
is that the respondents/accused on 15.05.2018 at about
6.50 p.m. assaulted on the complainant. On raising
lalkara by Ghulam Rasool respondent No.3, Ghulam
Haider respondent No.1 made a fire shot with the
intention to cause death, which hit on right arm of injured
Asif. Muhammad Riaz respondent No.2 made fire shot,
which hit on right ear of injured Muzammil Malook,
whereas rest of the respondents/accused started aerial
firing and managed to flee away from the scene.

3. Arguments heard. Record perused.

4. After hearing the learned counsel for the parties and perusing the record, it transpires that there are general allegations against other respondents except respondents No.1 & 2 Ghulam Haider and Muhammad Riaz. Respondent No.1 Ghulam Haider is nominated in FIR with specific role that he caused injury with pistol on the left arm of injured Asif, who was medically examined on the same day, wherein doctor observed two fire arm injuries on his person. Injury No.1 is at left forearm having inverted margins, whereas injury No.2 is the exit wound of the same and these injuries are specifically attributed to respondent No.1 in the FIR and said injured Asif while recording his statement u/s 161 Cr.P.C. also endorsed the stance taken by the complainant while lodging the FIR in which he fully involved respondent No.1 in the commission of crime. During the course of investigation, said respondent No.1 was also found guilty.

5. As far as injury attributed to respondent No.2 Muhammad Riaz is concerned, though he was attributed fire arm injury on the person of Muzammil Malook injured but according to medical report, no fire arm injury was observed by the doctor in MLR and during the course of investigation he was found present at the scene of crime but with empty handed.

6. For what has been discussed above, this Court finds that no ground for cancellation of bail is made to the extent of respondents No.2 to 5, hence, this petition to their extent is hereby **dismissed**.

7. As far as the case of respondent No.1 Ghulam Haider is concerned, as discussed above he is specifically nominated in the FIR with attribution of causing fire arm injury on the person of injured Asif, which injury is duly reflected in MLC and attracts the provision of section 337-F(iii) PPC. He has been found involved in the commission of alleged crime coupled with the fact that the learned Addl. Sessions Judge, Lahore, while confirming the ad-interim pre-arrest bail of respondent No.1, has not mentioned the basic factor of mala fide or ulterior motive, which is a condition precedent for awarding of pre-arrest bail. Reliance in this regard is placed on the judgment passed by the august Supreme Court of Pakistan in case of “MUKHTAR AHMAD v. The STATE and others” (2016 SCMR 2064), in which it is observed that:-

“This Court has repeatedly declared that the concession of pre-arrest bail cannot be allowed to an accused person unless the Court feels satisfied about seriousness of the accused person’s assertion regarding his intended arrest being actuated by mala fide on the part of the complainant party or the local Police but not a word about this crucial aspect of the matter is to be found in the impugned orders passed by the High Court in the present case.”

The observation given in the impugned order by the learned Addl. Sessions Judge, is not only arbitrary but also perverse from the facts and circumstances of the case, so, this petition to the extent of respondent No.1 Ghulam Haider is **allowed** and his pre-arrest bail

granting order dated 27.10.2018 passed by the learned
Addl. Sessions Judge, Lahore is hereby **recalled**.

(MUHAMMAD WAHEED KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

Sajid